

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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Ronit D. Appel,

Index No. 155293/2022

Plaintiff,

**AMENDED VERIFIED
COMPLAINT**

- against -

**JURY TRIAL
DEMANDED**

NEW YORK CITY POLICE DEPARTMENT,
NYPD SERGEANT CHRISTOPHER N. SAINTU,
NYPD OFFICER KELVIN I. CRUZ, JONATHAN FOX,
ALEXANDER VARGAS, ST. LUKE'S ROOSEVELT
HOSPITAL CENTER FOUNDATION, INC. A/K/A MOUNT
SINAI WEST, MOUNT SINAI HEALTH SYSTEM, INC.,
MICHOTTE NABUA, R.N., DAVID ADESUYAN, R.N.,
SARA HADI, M.D., ARTHUR YING YOUNG FU, M.D.,
RACHAEL HEYDEN, M.D., SABRINA LEFCOCHILLOS-
FOGELQUIST, M.D., JOHN DOES 1-10, and
ERICA LIU, ESQ.,

Defendants.

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Plaintiff Ronit D. Appel, an attorney representing herself, complaining of defendants
New York City Police Department ("NYPD"), NYPD Sergeant Christopher N. Saintu, NYPD
Officer Kelvin I. Cruz, Jonathan Fox, Alexander Vargas, St. Luke's Roosevelt Hospital Center
Foundation, Inc. a/k/a Mount Sinai West, Mount Sinai Health System, Inc., Michotte Nabua,
R.N., David Adesuyan, R.N., Sara Hadi, M.D., Arthur Ying Young Fu, M.D., Rachael Heyden,
D.O. s/h/a Rachael Heyden M.D., Sabrina Lefcochilos-Fogelquist, M.D., John Does 1-10, and
Erica Liu, Esq. alleges:

PARTIES

1. Plaintiff Ronit D. Appel (“**Plaintiff**”) is a natural person residing in New York, NY. Plaintiff is an attorney and a dual U.S. and Israeli citizen. Plaintiff, who is bilingual in English and Hebrew, is a graduate, with honors, of the Interdisciplinary Center Herzliya (now Reichman University), where she was a member of Law Review and an Argov Fellow in Leadership and Diplomacy.
2. Defendant New York City Police Department is an agency of the City of New York.
3. Defendant NYPD Sergeant Christopher N. Saintu is a natural person who is, upon information and belief, a NYPD Sergeant bearing Badge #1491 and a member of the 20th Precinct of the NYPD. NYPD Sergeant Christopher N. Saintu is sued in his official and individual capacities.
4. Defendant NYPD Officer Kelvin I. Cruz is a natural person who is, upon information and belief, a NYPD Police Officer bearing Badge # 17165 and a member of the 20th Precinct of the NYPD. NYPD Officer Kelvin I. Cruz is sued in his official and individual capacities.
5. Defendant Jonathan Fox is a natural person who is, upon information and belief, an Emergency Medical Technician employed by Mount Sinai Health System, Inc. Upon information and belief, Jonathan Fox holds Israeli citizenship and is a covert agent of the Mossad, Israel’s international intelligence agency, operating in New York City. Jonathan Fox is sued in his official and individual capacities.
6. Defendant Alexander Vargas is a natural person who is, is upon information and belief, an Emergency Medical Technician employed by Mount Sinai Health System, Inc. Alexander Vargas is sued in his official and individual capacities.

7. St. Luke's Roosevelt Hospital Center Foundation, Inc. a/k/a Mount Sinai West ("**Mount Sinai West**") is a domestic not-for-profit corporation existing under the laws of the State of New York with its principal office in New York County.

8. Defendant Mount Sinai Health System, Inc. is a domestic not-for-profit corporation existing under the laws of the State of New York with its principal office in New York County.

9. Defendant Michotte Nabua, R.N. ("**Nurse Nabua**") is a natural person who is, upon information and belief, a registered nurse employed as an Emergency Department Nurse at Mount Sinai West, which, upon information and belief, is a division of the Mount Sinai Health System, Inc. Nurse Nabua is sued in her official and individual capacities.

10. Defendant David Adesuyan, R.N. ("**Nurse Adesuyan**") is a natural person who is, upon information and belief, a registered nurse employed at Mount Sinai West. Nurse Adesuyan is sued in his official and individual capacities.

11. Defendant Sara Hadi, M.D. is a natural person who is, upon information and belief, an emergency medicine doctor employed at Mount Sinai West. Sara Hadi, M.D. is sued in her official and individual capacities.

12. Defendant Arthur Ying Young Fu, M.D. is a natural person who is, upon information and belief, employed as an emergency medicine resident at Mount Sinai West. Arthur Ying Young Fu, M.D. is sued in his official and individual capacities.

13. Defendant Rachael Heyden, D.O. s/h/a Rachael Heyden, M.D. ("**Rachael Heyden, D.O.**") is a natural person who is, upon information and belief, a psychiatrist on the staff of Mount Sinai Health System, Inc. Rachael Heyden, D.O. is sued in her official and individual capacities.

14. Defendant Sabrina Lefcochilos-Fogelquist, M.D. is a natural person who is, upon information and belief, employed as a psychiatric resident at Mount Sinai West. Sabrina Lefcochilos-Fogelquist, M.D. is sued in her official and individual capacities.

15. Defendants John Does 1-10 are officers/employees of the NYPD, employees of the Mount Sinai Health System, Inc./Mount Sinai West, and/or any other individuals whose identities are presently unknown to Plaintiff, who played a role in the unlawful arrest, false imprisonment, and/or assault and battery on Plaintiff discussed herein. The exact number of said defendants is presently unknown to Plaintiff. For the purposes of this Amended Verified Complaint, Plaintiff has designated such defendants as John Does 1-10. They are sued in their official and individual capacities.

16. Erica Liu, Esq. is a natural person who was, upon information and belief, employed as an Assistant General Counsel in the Legal Department of Mount Sinai Health System, Inc. from approximately November 2020 to approximately July 28, 2022.

JURISDICTION AND VENUE

17. This Court has jurisdiction in this action pursuant to CPLR §§ 301 and 302.

18. Venue is proper in this Court pursuant to CPLR § 503(a) because Plaintiff resides in New York County and because all or a substantial part of the events or omissions giving rise to the claims subject of this Amended Verified Complaint occurred in New York County.

FACTUAL BACKGROUND

19. This lawsuit arises out of the unlawful arrest and kidnapping of Plaintiff on February 12, 2022 and the subsequent false imprisonment of Plaintiff and horrific assault and battery of

Plaintiff, as discussed herein. As a result of the grossly unlawful actions of the defendants, as discussed herein, Plaintiff sustained severe injuries, as discussed herein.

20. On February 9, 2022, Plaintiff, an attorney and a dual U.S. and Israeli citizen, exposed corruption of the Second Circuit Court of Appeals in an appeal brought by her against, among others, Hon. Esther Hayut, the Chief Justice of the Supreme Court of the State of Israel, and Yosef Meir Cohen, the immediate past head of the Mossad. Hon. Esther Hayut and Yosef Meir Cohen were charged, in a civil Complaint filed in the United States District Court for the Southern District of New York on August 10, 2020 under the Torture Victim Protection Act of 1991 with ordering, in June of 2020, that Plaintiff be assassinated as part of a conspiracy to torture and assassinate Plaintiff for exposing corruption of the State of Israel, including corruption of its Supreme Court, in connection with the theft of Plaintiff's very valuable penthouse home in Jerusalem, which was facilitated by, *inter alia*, extensive corruption in the Israeli judicial system. The Complaint in said action alleges, *inter alia*, that one method of torture employed by the Mossad is the spreading of false rumors that Plaintiff is suicidal and/or mentally ill in order to discredit Plaintiff's claims of judicial corruption in Israel and to facilitate a murder of Plaintiff that would be framed to appear as a suicide.

21. Also parties to the appeal and alleged co-conspirators with Yosef Meir Cohen are, among others, two high-level Mount Sinai executives, namely, Dr. Kenneth Davis, President and CEO of the Mount Sinai Health System, Inc. and Dr. David Reich, President and Chief Operating Officer of Mount Sinai Hospital. The Complaint filed on August 10, 2020 under the Torture Victim Protection Act of 1991 alleges, *inter alia*, that Drs. Davis and Reich covered-up what it appears was an assassination attempt on Plaintiff on June 30, 2020 by individuals who arrived for Plaintiff at her father's house, located at 322 West 78th Street, New York, NY, in a run-down,

fake-looking van with the Mount Sinai Hospital logo. A man who appears to be the same man who drove that van, which it appears held a team of Mossad assassins, was caught on video tape vandalizing Plaintiff's father's car in May of 2021. The NYPD initially began investigating in May of 2021 and then abruptly terminated its investigation, with no explanation. A NYPD detective, Officer Steven Smith, Badge #2399, failed to show up for a scheduled meeting with Plaintiff in May of 2021, with no notice or explanation.

22. The corruption of the Second Circuit Court of Appeals in the aforementioned appeal includes, *inter alia*: the Clerk's Office's improper rejection and deletion from the docket of Plaintiff's Acknowledgment and Notice of Appearance, Form C (Civil Appeal Pre-Argument Statement) and Form D-P, and subsequent failure, for weeks, to return said filings to the docket despite an Order of the Second Circuit Court of Appeals requiring it to do so; (ii) the Clerk's Office's removal of six defendants (including, *inter alia*, Hon. Esther Hayut, Yosef Meir Cohen, Dr. Kenneth Davis, and Dr. David Reich) from the appeal and its decision not to designate said six defendants as appellees despite repeated requests of Plaintiff seeking that the Court correct the designations of said defendants to reflect that they are appellees in the appeal; (iii) the unofficial removal, with no notice or explanation to Plaintiff, of Plaintiff's e-filing privileges within 24 hours after she filed her Acknowledgment and Notice of Appearance, Form C (Civil Pre-Argument Statement) and Form D-P; and (iv) the failure to docket a motion filed by Plaintiff via e-mail (after her e-filing privileges were removed) which, *inter alia*, exposed the Court's corruption and the February 12, 2022 kidnapping and assault of Plaintiff. The Court moreover scrambled the order of the appellees in the appeal such that the appeal is no longer captioned *Appel v. Hayut et al.* As Hon. Esther Hayut is the Chief Justice of the Supreme Court of the State of Israel, the new caption benefits both Hon. Hayut and the State of Israel, among others.

23. On February 9, 2022, Plaintiff filed an emergency motion with the Court of Appeals in which she sought, *inter alia*, that the Court compel the Clerk's Office to accept her Acknowledgment and Notice of Appearance, Form C, and Form D-P, which had been improperly rejected and deleted from the docket. In said motion, which was ultimately granted weeks later by the Court, Plaintiff noted that, "there is documented evidence of corruption of this Court relating to this case." The motion was docketed by the Court on February 10, 2022.

24. On February 12, 2022, at approximately 9:41 p.m., days after filing said motion, approximately ten NYPD officers, all men, showed up at Plaintiff's father's house (where Plaintiff is staying), at 322 West 78th Street, New York, NY, without any warrant. Multiple police officers and a man wearing a jacket that bore the letters EMS unlawfully entered the vestibule to the house without any warrant and both the police and the "EMS representative" threatened to break down the inside door to the house. Plaintiff's father, a physician, and Plaintiff spoke to the police and said "EMS representative" from behind that door but did not let them in. The police, who had no warrant and who did not claim at any time to be acting on any legal authority, claimed that the police had received a call that Plaintiff had posted online that she was going to harm herself. Plaintiff's father, who identified himself as a doctor, made clear to the people threatening to break in that there was no need for them to come in the house and that Plaintiff had not posted that she was going to harm herself. Plaintiff also insisted that she had not posted that she would harm herself and she requested to see the alleged post. Her request was ignored. Plaintiff also rhetorically questioned where the police's warrant was. Her statement was met with a perplexed look on the face of the officer acting as the officer in charge.

25. The officer who acted as the officer in charge, who also stated that he is the supervisor after Plaintiff's father asked to speak with his supervisor, identified his last name as Saintu and

stated that he is of the 20th Precinct, with Badge #1491. When Plaintiff questioned what his first name is, Officer Saintu initially responded that “we don’t give out first names” or words to that effect. He thereafter immediately changed his mind and said that his first name is Joe. Plaintiff did not believe that his first name is actually Joe and skeptically asked Officer Saintu if that is his real name. In response, Officer Saintu did not confirm that that is his real name but merely emphasized that he said his name is Joe. Plaintiff wrote down Officer Saintu’s name, precinct, and badge number, all as provided by Officer Saintu. Plaintiff later learned that she was correct that Officer Saintu provided a false name. A search on the online Officer Profile portal of the NYPD reveals that Officer Saintu’s first name is actually *Christopher*. Officer Saintu’s decision to provide a false name speaks volumes as to his criminal intent.

26. Upon information and belief, the NYPD never received the alleged call about Plaintiff and, upon information and belief, the existence of said call was fabricated by Sergeant Saintu in an attempt to gain access to Plaintiff’s father’s house and murder and/or harm Plaintiff and her father and raid Plaintiff’s father’s house, without any warrant or legal grounds therefor. To this day, despite two FOIL requests, the first of which was denied and the second of which has been pending for months, Plaintiff has not received a recording of the alleged call. Nor has she been notified of the identity of the alleged caller. The hospital records received by Plaintiff indicate that the hospital was never notified of the identity of the alleged caller.

27. The police would not listen to Plaintiff’s father or to Plaintiff and tied a rope or something functioning as a rope to the inside doorknob, which they extended to the outside of the house. A stretcher had been positioned in front of the house and a Mount Sinai ambulance waited outside the house.

28. Plaintiff was terrified and ran to the house's backyard, where she scaled an approximately 8-foot wooden fence adjacent to an approximately 6-foot picket wooden fence to reach a neighbor's house. Her neighbor, Steven Capozzola, after hearing Plaintiff's frantic knocks on his backyard door and after speaking with her, invited her to enter his house (through the backyard door). After Plaintiff briefly explained the situation and asked if she could stay, Mr. Capozzola said that he would have to ask his wife, who had run upstairs with their daughter after hearing frantic knocks on the backyard door. After Mr. Capozzola, after speaking on the phone, notified Plaintiff that she could not stay, Plaintiff, observed by Mr. Capozzola, exited her neighbors' front door and screamed for help as she ran. She was chased by several NYPD officers (which, upon information and belief, included NYPD Sergeant Christopher N. Saintu and/or NYPD Officer Kelvin I. Cruz), who soon apprehended and arrested Plaintiff (an approximately 105 lb., 5'2" woman) while manhandling and handcuffing her, all while Plaintiff, in sheer terror, screamed for help at the top of her lungs but did not resist the arrest. Plaintiff had trouble breathing and cried out that she could not breathe and that the handcuffs were too tight but no effort was made to remove or loosen her handcuffs, which were so tight they left Plaintiff bruised and with significant marks on her arms long after they were removed. Without requesting that Plaintiff climb onto the stretcher, the police then immodestly grabbed Plaintiff's arms and legs, swung her onto a stretcher, with her hands handcuffed behind her, restrained her to the stretcher, and rolled her into the Mount Sinai ambulance that was waiting for her.

29. Once in the ambulance, Plaintiff kept begging to speak to her father but she was not allowed to. Once in the ambulance, Plaintiff questioned a police officer as to why she was in the ambulance or on a stretcher or handcuffed or a question to that effect. Said police officer, who,

upon information and belief was Officer Kelvin I. Cruz, responded that Plaintiff jumped out a window, to which Plaintiff responded that she did not jump out a window.

30. Inside the ambulance, a male, who upon information and belief was defendant Jonathan Fox, introduced himself as “Yonatan.” Upon hearing him say his name with an Israeli pronunciation, Plaintiff sensed that he is Israeli and became very alarmed. A second “EMT” who did not identify himself, who was dressed in casual street clothes, and who was not wearing any EMS attire or even a mask, soon entered the ambulance and after asking Plaintiff if she speaks Hebrew, to which she responded in the affirmative, began to speak to Plaintiff in Hebrew, which further alarmed Plaintiff, who in August of 2020 filed a lawsuit under the Torture Victim Protection Act of 1991 alleging, *inter alia*, that she is the subject of assassination attempts and torture carried out by the Mossad and who, approximately two and a half weeks prior to February 12, 2022, filed a Notice of Appeal of the final judgment entered in said action.

31. Once Plaintiff was inside the ambulance, another man wrapped an ace bandage or bandages, or something similar thereto, over and/or around Plaintiff’s legs/ankles, further restraining her to the stretcher.

32. The door to the ambulance was soon closed and the “EMT” who had spoken to Plaintiff in Hebrew injected Plaintiff, without taking her medical history, without inquiring as to whether she was pregnant or currently taking any medications, and without knowing what allergies she may have. When Plaintiff saw the injector remove the needle from a pouch he held (a small black pouch that resembled a makeup pouch), she begged not to be injected but her desperate plea was ignored. Prior to injecting Plaintiff, Plaintiff was not told that she would be injected and was given no explanation as to why she was being injected or as to what she was being injected with. *Plaintiff, who felt certain that these were the last few moments of her life, pleaded not to be*

injected, to no avail. When Plaintiff was injected, she was forcefully held still by another man as the injection was forced into her left upper arm. Said man who held Plaintiff still wore a t-shirt which, upon information and belief, was not an EMS uniform. When Plaintiff asked, after being injected, what she was injected with, the injector informed her that it was Ketamine [a common date rape drug which has been recognized as a potentially lethal drug]. At the time Plaintiff was injected, she was already handcuffed, with her hands behind her, tied down to the stretcher, and completely restrained. There was no lawful justification for the injection, which, within approximately 20 seconds, rendered Plaintiff unconscious for approximately an hour and a half. Notably, at no time prior to injecting Plaintiff, or afterward, did the aforementioned injector or any EMS personnel take Plaintiff's medical history or inquire if she had recently consumed caffeine or alcohol, or any other drug, or if she is pregnant. It was extremely dangerous or potentially extremely dangerous to administer Ketamine to Plaintiff without knowing the answers to these questions. Furthermore, it was especially improper to inject Plaintiff with Ketamine, which can cause hallucinations, prior to taking her for a psychiatric evaluation. Moreover, although Plaintiff complained, during her arrest, that she had trouble breathing, no one addressed this issue prior to rendering her unconscious (or, upon information and belief, at any time).

33. Bodily evidence, among other evidence, indicates that, once unconscious, Plaintiff, was operated on and a foreign body was implanted in her lower right leg, causing Plaintiff subsequent severe, prolonged pain in her lower right leg. There is also evidence, in the form of multiple needle marks indicating that, in addition to the injection that rendered her unconscious, Plaintiff had an intravenous catheter inserted into her while she was unconscious and/or that blood was drawn from her and/or that an additional drug or other substance was injected into her.

Moreover, upon information and belief, Plaintiff, while unconscious, was, as indicated by, *inter alia*, physical evidence, raped in the ambulance and/or at Mount Sinai West on February 12, 2022.

34. Upon information and belief, each of Jonathan Fox, Alexander Vargas, NYPD Sergeant Christopher N. Saintu, and/or NYPD Officer Kelvin I. Cruz accompanied Plaintiff to the hospital and/or was present in the ambulance when Plaintiff was unconscious. Upon information and belief, one or more of said persons raped Plaintiff while she was unconscious in the ambulance.

35. Notably, upon information and belief, after Plaintiff was arrested, kidnapped, forced into the Mount Sinai ambulance, and rendered unconscious, she was kept inside the closed ambulance for *approximately 40 minutes* before being admitted to the hospital, which is approximately five minutes away from Plaintiff's father's house by motor vehicle. The hospital records state that Plaintiff "was accompanied by her father" to the hospital when in truth, upon information and belief, Plaintiff's father never left his home at any time while the police and ambulance were present and did not accompany Plaintiff to the hospital or come to the hospital to see Plaintiff at any time.

The EMS Report

36. On April 26, 2022, months after Plaintiff's kidnapping and assault, Plaintiff finally received an EMS report (the "**EMS Report**"), which she had repeatedly requested but which was not provided to her for months. Said EMS Report received by Plaintiff on April 26, 2022 is a falsified record which criminally attempts to cover-up the horrific crimes committed against Plaintiff in the ambulance.

37. First, the EMS Report falsely indicates that Plaintiff was fully conscious during the entire ambulance ride when, in fact, approximately three minutes after entering the ambulance, she was injected against her will, causing her to lose consciousness within approximately 20 seconds.

38. The EMS Report further falsely states that Plaintiff has a prior medical history of “Psychiatric Problems” when Plaintiff had no prior medical history of any psychiatric problems. Even the Attending Attestation signed by the attending psychiatrist, Dr. Rachael Heyden, who unlawfully evaluated Plaintiff in the Comprehensive Psychiatric Emergency Program (“CPEP”) of Mount Sinai West, after Plaintiff regained consciousness, notes that Plaintiff had *no documented psychiatric history*. The statement in the EMS Report that Plaintiff has a prior medical history of psychiatric problems is a blatantly false one, as are many other statements and notations in the report.

39. Moreover, upon information and belief, in an attempt to cover-up that she was unlawfully assaulted, including by injection, in a BLS (Basic Life Support) ambulance, a paragraph was added at the end of the EMS Report, titled “Narrative History Text”, which states, *inter alia*, that after Plaintiff entered the ambulance, she was “combative” and did not cooperate with the EMS assessment and that an ALS (Advanced Life Support) unit arrived on scene and “took over patient care.”

40. Here, Plaintiff notes that, upon information and belief, only an ALS EMT may inject a patient and not a BLS EMT. Upon information and belief, in a fraudulent attempt to explain why Plaintiff was unlawfully injected in a *BLS* ambulance, Jonathan Fox and/or Alexander Vargas and/or Erica Liu, Esq. and/or Mount Sinai Health System, Inc. and/or Mount Sinai West fabricated that an Advanced Life Support unit was dispatched to Plaintiff. However, the bills that Plaintiff received for her ambulance transport plainly indicate that Plaintiff received *only* BLS

care. It moreover makes no sense that the BLS team would have waited for an ALS unit to arrive at the scene when it would have taken the ambulance just minutes to reach the hospital and, in fact, it was forbidden by protocol established by the NYS Department of Health for the BLS staff to have waited for an ALS unit to arrive. Moreover, the time stamps, with accompanying notations, in the EMS Report blatantly contradict the clearly fabricated claim that an ALS unit arrived on the scene and took over Plaintiff's care. For instance, the EMS Report has an entry at 22:20:55 (exactly one minute after the BLS EMS team reportedly first made contact with Plaintiff) from *Jonathan Fox* (a BLS EMT) stating that the BLS Assessment was a success. This clearly contradicts the note added at the end of the report indicating that Plaintiff was combative and did not cooperate with the EMS assessment and that an ALS unit arrived on scene and took over Plaintiff's care.

41. Notably, while the EMS Report states that for "further details see [the ALS unit's] PCR", no PCR [Patient Care Report] of any ALS unit was ever provided to Plaintiff. Despite *five* separate medical record requests for the dates February 12-13, 2022, made between February 2022 through June of 2022, including two requests in which she specifically requested the alleged ALS Patient Care Report, Plaintiff never received any ALS Patient Care Report. Upon information and belief, no ALS Patient Care Report was included with the EMS Report or provided to Plaintiff because *no ALS unit was ever dispatched to Plaintiff*. The note in the EMS Report regarding the arrival of an "ALS unit" was clearly designed to cover-up, *inter alia*, Plaintiff's assault and battery in a Mount Sinai BLS ambulance, including, but not limited to, the illegal administration of a drug by injection.

42. Upon information and belief, after Plaintiff was unconscious in the ambulance, the police and/or EMS tried to convince Plaintiff's father to come see Plaintiff, tried to gain access to his

house, and tried to convince him to accompany Plaintiff to the hospital in the ambulance, all while making no mention of the fact that Plaintiff was unconscious. Upon information and belief, Plaintiff's father, however, did not leave his house or grant entry to his house.

43. Notably, evidence has since been discovered on Plaintiff's computer showing that on February 12, 2022, while the police and ambulance were outside Plaintiff's father's house, Plaintiff's computer/URL was hacked into.

44. Plaintiff further notes that although Plaintiff was informed by the injector that she was injected with Ketamine, there is no documentation in the hospital record, as provided to Plaintiff, from any EMS personnel regarding the fact that Plaintiff was injected and what she was injected with. Nurse Nabua, who was not present when Plaintiff was injected, noted in the hospital record that Plaintiff was "given 10 mg midazolam by medics." However, per the hospital records Plaintiff received, Nurse Nabua received no documentation from any EMS personnel that Plaintiff was injected or of what Plaintiff was injected with and Nurse Nabua had no personal knowledge of what Plaintiff was injected with. The hospital records indicate that Nurse Nabua relied on the statement of a police officer regarding what Plaintiff was injected with. But, clearly, said police officer, who did not inject Plaintiff and who was, upon information and belief, not present in the ambulance when Plaintiff was injected, could not reasonably have been relied upon in determining what Plaintiff was injected with.

At Mount Sinai West

45. When Plaintiff arrived at Mount Sinai West, at approximately 10:42 p.m., she was still unconscious. According to the hospital records, approximately 15 minutes after reaching the hospital, Plaintiff was admitted to the hospital's Emergency Department. The EMS Report

provides no explanation for why the EMS staff waited, as indicated by Plaintiff's medical record, approximately 15 minutes to bring Plaintiff into the hospital. According to the hospital records provided to Plaintiff, instead of being taken straight to the CPEP for a psychiatric evaluation, Plaintiff was admitted to the Emergency Department, where she was put "in bed," purportedly on suicide watch, and thereafter seen by an emergency medicine resident, Arthur Ying Young Fu, M.D., and an emergency medicine doctor, Sara Hadi, M.D. According to the hospital records provided to Plaintiff, Dr. Hadi gave clearance for Plaintiff [who was unconscious] to be transferred to the CPEP, noting, *inter alia*, that "the patient's presenting problem is best addressed through evaluation in the CPEP." Plaintiff was thus, as indicated by the hospital records provided to Plaintiff, transferred to the CPEP without the medical staff having properly examined and evaluated her and given her proper medical treatment and without them having addressed important medical issues, such as the fact that Plaintiff arrived unconscious to the hospital, the fact that she had an abnormally high pulse and high blood pressure, and the fact that she had bloodied wounds on her right leg and physical evidence on her body consistent with having been raped.

46. Notably, the hospital records provided to Plaintiff indicate that NYPD Officer Kelvin I. Cruz falsely reported that Plaintiff jumped off a window when the police arrived [at Plaintiff's father's house]. Notwithstanding this false report and although Plaintiff was unconscious at the time she was examined in the emergency room, no steps were taken, per the hospital records Plaintiff received, to check whether Plaintiff suffered injuries, including internal injuries, when she allegedly jumped off a window. The hospital went to great lengths to cover-up the fact that Plaintiff arrived unconscious at the hospital, noting nowhere in Plaintiff's medical record as provided to Plaintiff that Plaintiff arrived unconscious at the hospital.

47. Before Plaintiff was unlawfully psychiatrically evaluated in the CPEP, the hospital went to great lengths to falsely portray Plaintiff as a patient at a high-risk of suicide. Among other things, the hospital records falsely indicate that Plaintiff [**while unconscious**] made certain statements that she never made. For instance, the records indicate that Plaintiff, **during the time she was unconscious**, stated that “she has thoughts of hurting or killing [herself] right now.” Clearly, Plaintiff could not have made any such statement while she was unconscious. Nor did Plaintiff make any such statement to any of the EMS or hospital staff while she was conscious nor would she have since such statement is untrue. Moreover, according to the hospital records, at the same time that Plaintiff allegedly made such statement regarding having thoughts of hurting or killing herself right now, the hospital was “unable to access” whether Plaintiff or a member of her household was diagnosed with COVID-19 in the past 14 days. According to the hospital records, the hospital was further “unable to access”, due to Plaintiff’s “medical condition”, whether Plaintiff had recent travel or close contact with a sick traveler in the last 21 days. It is not credible that Plaintiff’s “medical condition” prevented her from providing information regarding whether she or a member of her household was diagnosed with COVID-19 in the past 14 days or regarding any recent travel/close contact with a sick traveler yet allowed her to state that she has thoughts of hurting or killing herself right now.

48. Per the hospital records, while at the hospital, [prior to being taken to the CPEP for an unlawful psychiatric evaluation], Plaintiff, a young religious female woman, was [**while unconscious**] disrobed, which resulted in her being improperly touched in intimate areas. Plaintiff reportedly, according to hospital records, underwent [**while unconscious**] an [unlawful] “[b]ody search” at the hospital, which reportedly resulted in “[n]o contraband found.”

49. Upon information and belief, Plaintiff was raped in the ambulance and/or at the hospital during the time she was unconscious. Shortly after regaining consciousness, Plaintiff became cognizant of a new, very strong foul odor emanating from her vagina, a sign of having been raped. Furthermore, after returning from the hospital, Plaintiff discovered a significant bruise on her inner upper right thigh, consistent with one or more persons having raped her. Plaintiff further discovered a scratch under her right breast. In addition, in the days/weeks following her attack, Plaintiff received cyber messages indicating that she had been raped, that her rape was filmed, and that she had been impregnated.

Michotte Nabua, R.N.

50. According to the hospital records, Nurse Nabua did the Emergency Department Triage/Intake of Plaintiff. Nurse Nabua was, at best, grossly negligent in administering care to Plaintiff. First, Nurse Nabua covered-up the fact that Plaintiff arrived unconscious and significantly bruised, as well as wounded, at the hospital and did not ensure that proper care was administered to Plaintiff. Instead of reporting that Plaintiff arrived at the hospital unconscious, Nurse Nabua reported that, upon arriving at the hospital, Plaintiff's level of consciousness was "[l]ethargic." Minutes later, while Plaintiff was still unconscious, Nurse Nabua reported, *inter alia*, that Plaintiff is "calm, now in triage."

51. Moreover, upon information and belief, Nurse Nabua took no reasonable steps to ascertain what drug was administered to Plaintiff that caused her to lose consciousness. Upon information and belief, and as indicated by the hospital records, although Nurse Nabua received no documentation from any EMS personnel regarding what Plaintiff was injected with, and

although she had no personal knowledge of what Plaintiff was injected with, Nurse Nabua reported that Plaintiff was given “10 mg midazolam by medics.”

52. Upon information and belief, Nurse Nabua knew or should have known that Plaintiff’s transport to the hospital was unlawful and that Plaintiff was assaulted en route to the emergency room. Upon information and belief, Nabua never received a Form OMH 474A/476A regarding Plaintiff from any NYPD officer, or anyone else, and did not request to receive said form. Moreover, upon information and belief, it was highly irregular for a patient being involuntarily transported to the CPEP for a psychiatric evaluation to arrive to the hospital in a state of unconsciousness, with bruises and wounds on her body and evidence suggesting rape when said patient was, as noted in the hospital records, with her father and conscious prior to being transported to the hospital.

53. Instead of ensuring that Plaintiff received proper care, Nurse Nabua took active steps to cover-up the crimes committed against Plaintiff and falsely portray Plaintiff as a patient at a high-risk of suicide. In addition to representing that Plaintiff was “calm” in triage, she falsely reported that Plaintiff stated [**while unconscious**] that she has thoughts of hurting or killing herself right now and put her, or had her put, while unconscious, in bed, purportedly on suicide watch.

54. Although Nurse Nabua recorded an alarmingly high pulse when Plaintiff was admitted to the hospital, Nurse Nabua, upon information and belief, took no action to ensure that said high pulse was properly evaluated or that other important medical issues, such as Plaintiff’s unconscious state, bruises, and wounds, were properly addressed.

David Adesuyan, R.N.

55. Like Nurse Nabua, Nurse Adesuyan was, at best, grossly negligent in his handling of Plaintiff. First, upon information and belief, Nurse Adesuyan brought Plaintiff, or had Plaintiff brought, **while unconscious**, to undergo a body search, meaning that Plaintiff was involuntarily stripped naked and her body was improperly touched and searched, all without her consent. Upon information and belief, said unlawful body search, which was conducted prior to Plaintiff's unlawful psychiatric evaluation in the CPEP, was authorized by Dr. Rachael Heyden and/or Dr. Sabrina Lefcochilos-Fogelquist. There were no lawful grounds for Plaintiff to have been subjected to such an intrusive violation of her body and privacy. Moreover, because Plaintiff was not conscious, she was unable to object to the body search, which constituted a blatant violation of her most basic rights.

56. Moreover, upon information and belief, Nurse Adesuyan brought Plaintiff, or had Plaintiff brought, to the locked CPEP despite the fact that he knew or should have known that there were no lawful grounds for Plaintiff's involuntary admission to, or examination in, the CPEP.

57. Moreover, rather than ensure that Plaintiff was properly evaluated and cared for, Nurse Adesuyan, like Nurse Nabua, attempted to cover-up, *inter alia*, the fact that Plaintiff arrived unconscious to the hospital. Moreover, like Nurse Nabua, Nurse Adesuyan falsified Plaintiff's medical record, reporting, *inter alia*, that she made statements that she never made.

Arthur Ying Young Fu, M.D.

58. As indicated by the hospital records, Plaintiff was [while unconscious] seen by defendant Arthur Ying Young Fu, M.D.

59. The hospital records provided to Plaintiff, which contain no report of Dr. Fu and no information whatsoever regarding the nature, and results, of Plaintiff's examination by Dr. Fu, indicate that Dr. Fu was, at best, grossly negligent, in administering care to Plaintiff. First, upon information and belief, Dr. Fu did not take reasonable steps to ascertain what Plaintiff was injected with and why Plaintiff arrived unconscious to the hospital. Moreover, upon information and belief, Dr. Fu did not take reasonable steps to evaluate, and if necessary treat, Plaintiff's unconscious state, abnormally high pulse, high blood pressure, bloodied wounds on her right leg, and multiple bruises on her body.

60. Dr. Fu knew or should have known that Plaintiff had been assaulted en route to the hospital and/or at the hospital. However, upon information and belief, instead of administering proper care to Plaintiff, he, like others at the hospital, covered-up the assault on Plaintiff.

61. Dr. Fu was moreover grossly negligent in allowing Plaintiff to be transferred to the CPEP for a psychiatric evaluation after she arrived to the emergency room in an unconscious state.

Sara Hadi, M.D.

62. As indicated by the hospital records, Plaintiff was [while unconscious] examined by defendant Sara Hadi, M.D.

63. Notably, the hospital records provided to Plaintiff do not include any report of Dr. Hadi, but, rather, perfunctory "Progress Notes" stating:

I evaluated this patient upon arrival to the ED. I reviewed the patient's available history and examined the patient. At this time, it's my assessment that medical issues are not the cause of this acute presentation, and the patient's presenting problem is best addressed through evaluation in the CPEP. The ED can be re-consulted for acute medical needs if needed.

Patient is appropriate for CPEP evaluation.^[SH.1]

64. Dr. Hadi was, at best, grossly negligent in administering care to Plaintiff. First, upon information and belief, Dr. Hadi did not take reasonable steps to ascertain what Plaintiff was injected with and why Plaintiff arrived unconscious to the hospital. Moreover, upon information and belief, Dr. Hadi did not take reasonable steps to evaluate, and if necessary treat, Plaintiff's state of unconsciousness, abnormally high pulse, high blood pressure, bloodied wounds on her right leg, and multiple bruises on her body.

65. Dr. Hadi knew or should have known that Plaintiff had been assaulted en route to the hospital and/or at the hospital. However, instead of administering proper care to Plaintiff, she, like others at the hospital, covered-up the assault on Plaintiff.

66. Moreover, Dr. Hadi knew or should have known that there were no lawful grounds for the involuntary admission to, and evaluation of Plaintiff in, the CPEP and, yet, she reported that "Patient is appropriate for CPEP evaluation" and allowed Plaintiff to be involuntarily and unlawfully transferred for a CPEP evaluation.

67. Dr. Hadi was moreover grossly negligent in allowing Plaintiff to be transported to the CPEP for a psychiatric evaluation when Plaintiff arrived in an unconscious state to the emergency room.

68. Moreover, Dr. Hadi was grossly negligent in allowing Plaintiff to be transferred from the Emergency Department to the CPEP while Plaintiff was unconscious. Plaintiff's unconscious state was clearly not best evaluated in the CPEP and it was grossly negligent to allow Plaintiff to be transferred to the CPEP in a state of unconsciousness.

69. Notably, in her perfunctory "Progress Notes," Dr. Hadi clearly tried to cover-up Plaintiff's medical condition, not mentioning that Plaintiff was unconscious and not explaining what Plaintiff's "acute presentation" was.

In the CPEP

70. Following the intrusive and unlawful body search and after Plaintiff regained consciousness, she was escorted into the locked CPEP of Mount Sinai West for a psychiatric evaluation. Notably, as indicated by the hospital records, the police did not accompany Plaintiff to the CPEP or inform the attending psychiatrist, Dr. Rachael Heyden, of the circumstances which brought Plaintiff into police custody. Nor, as indicated by the hospital records provided to Plaintiff, did the police provide the CPEP, or the hospital, with a Form OMH 474A/476A documenting that they had lawful grounds to transport Plaintiff to the hospital against her will, which they did not.

71. At approximately 11:45 p.m. on February 12, 2022, which was, upon information and belief, prior to Plaintiff's speaking with either the attending psychiatrist, Dr. Rachael Heyden, or the psychiatric resident, Sabrina Lefcochilos-Fogelquist, M.D., it was determined, by Dr. Heyden, that Plaintiff was at a "low risk" of suicide/self-harm in an emergency setting.

72. After undergoing the unlawful and highly intrusive body search and after being locked in the CPEP for approximately an hour, during which time Plaintiff was interviewed by Dr. Lefcochilos-Fogelquist and Dr. Rachael Heyden, Plaintiff was released. Despite the great lengths that the hospital staff went to in their attempts to falsely portray Plaintiff as someone who is at a high-risk of suicide, the psychiatric team that Plaintiff met with in the CPEP, Dr. Heyden and Dr. Lefcochilos-Fogelquist, concluded, after evaluating Plaintiff, that Plaintiff was at a "low risk" for suicide or self-harm in the community and Plaintiff was discharged from the hospital in the early morning of February 13, 2021, at approximately 12:48 a.m.

73. Though Dr. Heyden and Dr. Lefcochilos-Fogelquist found that Plaintiff was at a “low risk” for suicide or self-harm in the community, they unlawfully confined Plaintiff in the locked CPEP until she was discharged at approximately 12:48 a.m. on February 13, 2022.

74. Notably, neither Dr. Heyden nor Dr. Lefcochilos-Fogelquist ever disclosed to Plaintiff that she had arrived at the hospital unconscious. When Plaintiff met with Dr. Heyden, Dr. Heyden misrepresented to Plaintiff, who had not yet realized that she had been unconscious, that she had merely gone to have her vitals checked, making it seem as though Plaintiff had arrived in a fully conscious state to the hospital and had merely undergone a vitals check prior to entering the CPEP. Dr. Heyden moreover notified Plaintiff that “we” do not have the EMS Report and that it usually takes about a week until “we” get the EMS Report. Upon information and belief, Dr. Heyden intentionally tried to mislead Plaintiff to believe that she had merely gone to have her vitals checked, when this was not the case, and that the hospital did not have the EMS Report when in fact, upon information and belief, the hospital did have the EMS Report, which purports to bear the signature of Nurse Nabua, a hospital Emergency Department Nurse, with a time stamp of 02/12/2022 22:59.

75. Moreover, although Dr. Heyden and Dr. Lefcochilos-Fogelquist knew or should have known that Plaintiff was unlawfully involuntarily transported to the hospital and the CPEP, they allowed Plaintiff to be confined and evaluated in the locked CPEP. After being interviewed by Dr. Lefcochilos-Fogelquist in the CPEP, Plaintiff asked Dr. Lefcochilos-Fogelquist if she could go home. Her request was denied. Shortly thereafter, Plaintiff tried to exit on her own but she was unable to leave as the door to the CPEP was locked and could not be opened. A guard stationed outside the door did not open the door for Plaintiff, instead gesturing to Plaintiff that she should speak with someone sitting behind a glass/plexiglass window/wall in the CPEP.

When Plaintiff asked a female employee sitting behind said window if she could leave, she was told that she cannot leave and that things will be worse for her if she does not cooperate. Plaintiff was thus unlawfully prevented from leaving the CPEP until her discharge at approximately 12:48 a.m. on February 13, 2022.

76. The decision of Drs. Heyden and Lefcochilos-Fogelquist to confine Plaintiff in the CPEP and conduct a psychiatric evaluation of her was grossly negligent at best.

77. In the papers that Plaintiff received when she was discharged from the hospital, the hospital continued its attempts to cover-up the circumstances surrounding Plaintiff's arrival at the hospital, including, but not limited to, the fact that she arrived unconscious. The papers make no mention of the fact that Plaintiff was admitted unconscious to the Emergency Department prior to being transferred to the CPEP for a psychiatric evaluation.

78. Notably, page 5 of the papers Plaintiff received upon her discharge from the hospital contains an unsigned Patient Attestation, which Plaintiff was never shown at the hospital or requested to sign. The English version of the Patient Attestation states:

I have discussed my test results with my provider, and have received the relevant test results in my discharge summary. I have received my Discharge Instructions. I understand the plan for follow-up and whom to contact in an emergency. I have had an opportunity to ask questions, and have had my questions answered.

79. Notably, although the papers that Plaintiff received upon her discharge indicate that she was seen by both Dr. Heyden and Dr. Fu, neither the latter nor anyone else ever met with Plaintiff at any time after she regained consciousness to discuss her examination in the emergency room and the results thereof. It was grossly negligent that Plaintiff was not informed by anyone at the hospital that she had been in the emergency room, unconscious, with medical issues, prior to being transferred to the CPEP for a psychiatric evaluation. Notably, the papers

provided to Plaintiff upon her discharge from the hospital state, *inter alia*, that Plaintiff “ha[s] been psychiatrically cleared for discharge.” Nowhere, however, did they state that Plaintiff was *medically* cleared for discharge.

80. In the days following February 12, 2022, Plaintiff received ominous cyber messages, including, *inter alia*, one that stated, “You were warned!” and one that stated, “I taught that b-tch a lesson” or words to that effect.

81. The unlawful actions of the defendants named in this Amended Verified Complaint have caused, and continue to cause, Plaintiff, among other injury, severe pain and suffering, both physical and mental, and tremendous, irreparable damage to Plaintiff’s reputation.

82. As a result of the events of February 12-13, 2022, Plaintiff has suffered from, *inter alia*, severe trauma, bruising throughout her body, severe pain in her right leg, severe nausea, severe pelvic/abdominal cramping, irregular bladder activity, sleeping problems, nightmares, panic attacks/feelings of terror, especially when hearing sirens, seeing Mount Sinai ambulances, and seeing police vehicles, severe anxiety, and severe mental distress. Plaintiff has also suffered from, *inter alia*, severe reputational damage as well as humiliation.

83. Plaintiff notes that since the events of February 12 and 13, 2022, she has received repeated medical bills for her unlawful involuntary transport in a Mount Sinai BLS ambulance and for her unlawful involuntary visit to the CPEP.

84. Plaintiff further notes that Mount Sinai West has declined to provide Plaintiff with her complete medical record for February 12-13, 2022 as required by law, despite *five* separate requests from Plaintiff. Moreover, there is documentary evidence that Plaintiff’s medical record was fraudulently altered months after February 12, 2022. Here, Plaintiff notes that although she is not required to do so – because she is proceeding *pro se* and because she has not, despite her

requests, been provided with her complete medical record for February 12-13, 2022 – Plaintiff is filing a Certificate of Merit.

85. Plaintiff notes that it is grossly negligent, at best, that the hospital has no documentation from any EMS personnel that Plaintiff was injected and what she was injected with. It is further grossly negligent, at best, that the EMS Report is a falsified report which does not accurately reflect what transpired in the ambulance and which does not note anywhere that Plaintiff was injected and rendered unconscious in the ambulance. It is further grossly negligent, at best, that the hospital's records, as provided to Plaintiff, do not accurately reflect the state in which Plaintiff arrived at the hospital and do not describe how, if at all, Plaintiff was evaluated medically at the hospital and what medical care, if any Plaintiff received at the hospital.

Erica Liu, Esq.

86. As discussed *supra*, on August 10, 2020, Plaintiff commenced a lawsuit in the United States District Court for the Southern District of New York under the Torture Victim Protection Act of 1991 against, *inter alia*, Dr. Kenneth Davis, President and CEO of the Mount Sinai Health System, Inc., and Dr. David Reich, President and Chief Operating Officer of Mount Sinai Hospital.

87. Erica Liu, Esq., as in-house counsel at the Mount Sinai Health System, Inc. and counsel for Drs. Davis and Reich in said lawsuit, perpetrated fraud upon the court and Plaintiff in order to, *inter alia*, have the Court set aside the defaults entered against her clients, Dr. Kenneth Davis and Dr. David Reich, and dismiss the claims as against her clients, which the Court ultimately did by Opinion and Order dated June 30, 2021. The facts plainly indicate that in doing so Erica Liu, Esq. acted in collusion with her clients, Dr. Kenneth Davis and Dr. David Reich.

88. Among other things, Erica Liu, Esq. falsely represented to the Court, in, *inter alia*, the motion papers she filed seeking that the defaults entered against her clients be set aside, that the defaults of her clients were not willful when there can be no question at all that the defaults were willful and strategic and that Erica Liu, Esq. knew that the defaults were willful and strategic. Each of Drs. Davis and Reich was mailed, *inter alia*, a Notice of a Lawsuit and Request to Waive Service of a Summons on August 17, 2020. Dr. Davis was served with a Summons and Complaint via personal delivery to a co-worker at his workplace on October 9, 2020, followed by a mailing service on October 13, 2020. Dr. Reich was personally served with a Summons and Complaint on October 15, 2020. Each of Dr. Davis and Dr. Reich was mailed a copy of Plaintiff's motion for default judgments on November 9, 2020. For months after the filing of the action, *nothing* was heard from Dr. Davis, Dr. Reich, or any attorney on their behalf. Suddenly, on November 24, 2020, approximately two hours after the District Court issued an Order in which it made clear that the case would not be dismissed *sua sponte*, Plaintiff received an e-mail from Erica Liu, Esq., in-house counsel at the Mount Sinai Health System, in which Ms. Liu stated, *inter alia*, that "due to inadvertence on our part, this matter [the lawsuit] was not addressed earlier." In seeking to have the defaults entered against Drs. Davis and Reich set aside, no Affidavit or Declaration was submitted by Drs. Davis or Reich in support of their motion. Instead, Erica Liu, Esq. filed a memorandum of law and a Declaration signed by her, in which she fraudulently attempted to make it seem as though the defaults were not willful when they clearly were and when Ms. Liu clearly knew they were. Ms. Liu continued to perpetrate such fraud when she filed reply papers in further support of said motion.

89. Erica Liu, Esq. further represented to the District Court, in her motion papers to set aside the defaults entered against her clients, that the run-down van with the Mount Sinai Hospital logo

that arrived for Plaintiff at her father's house on June 30, 2020 was a *bona fide* visit of a hospital mobile crisis team when, upon information and belief, Ms. Liu knew that this was not the case. Upon information and belief, the Declaration purportedly signed by a Mount Sinai employee, Sara Kluge, who claimed to be present at the June 30, 2020 incident, either was submitted with a forged signature or was perjurally submitted, with Erica Liu, Esq.'s intent to deceive the Court and Plaintiff and in collusion with Drs. Davis and Reich. In Paragraph 10 of the Declaration, "Ms. Kluge" states:

Upon our arrival to Ms. Appel's home, myself and Ms. Wallick exited the van and rang the bell and identified ourselves. I held up my Mount Sinai badge to the "Ring" video doorbell.

90. No one who arrived at Plaintiff's father's house on June 30, 2020 could have held up any identification to any "Ring" video doorbell at the house because the house did not have any "Ring" video doorbell or any form of video doorbell or any video monitor on the outside of the house. On December 23, 2020, Plaintiff filed a letter notifying the District Court that the Declaration of Sara Kluge is perjurious. Neither Dr. Davis nor Dr. Reich, nor anyone on behalf of the Mount Sinai Health System, Inc. filed any response to that letter.

91. On December 29, 2020, Plaintiff filed a letter-motion seeking a pre-motion conference for the purpose of seeking leave to file a motion for the commencement of a criminal contempt proceeding in connection with said perjurious Declaration. In response, by letter dated December 30, 2020, Ms. Liu falsely labeled the [anticipated] motion "frivolous," falsely claiming, *inter alia*:

The Kluge Certification is accurate – Ms. Kluge did not commit perjury. On June 30, 2020, there was a "Ring" video doorbell at the location that the Mobile Crisis Team responded to and Ms. Kluge held her Mount Sinai identification up to the device. Whether Plaintiff, her

father, or any other person has since removed the “Ring” video doorbell at the residence is unknown....”

92. Ms. Liu’s letter contains no indication that Sara Kluge, the purported Declarant, was ever consulted with in response to Plaintiff’s statement, filed with the District Court, that her father’s house does not have, and never had, any “Ring” video doorbell, or any other type of video doorbell, or any video monitor.

93. On December 30, 2020, Plaintiff filed, in the District Court, a letter-motion requesting a pre-motion conference for the purpose of seeking leave to file a motion for the commencement of a criminal contempt proceeding against Erica Liu, Esq. for her misbehavior in the action, including her filing knowingly false statements with the Court in an attempt to cover-up blatant perjury and what the facts clearly indicate was an attempted assassination attack on Plaintiff on June 30, 2020. In response, Ms. Liu filed a letter in which she stated, *inter alia*:

I do not believe and have no reason to believe that the statements contained in the certification of Sarah Kluge, L.C.S.W., that was filed in support of Defendants [sic] motion to set aside entry of default is [sic] false and that Ms. Kluge committed perjury.

94. In this letter, too, there was no indication that the purported Declarant, Sara Kluge, was ever consulted with in response to Plaintiff’s claims of perjury in the Declaration.

95. Erica Liu, Esq.’s numerous violations of Judiciary Law § 487 caused Plaintiff severe injury, including, but not limited to, physical injury, mental distress, and reputational injury. In addition to resulting in, *inter alia*, the vacatur of the defaults entered against Drs. Davis and Reich and the dismissal of Plaintiff’s claims as against them, Erica Liu, Esq.’s fraud facilitated, *inter alia*, the February 12-13, 2022 kidnapping, false imprisonment, and assault and battery of Plaintiff.

Continued Attempts on Plaintiff's Life

96. The extensive cover-ups of Plaintiff's unlawful arrest, kidnapping, false imprisonment, and assault and battery and gross negligence relating thereto have facilitated additional attempts on Plaintiff's life. On the night of May 6, 2022, a vehicle attempted to run Plaintiff over on West 77th Street between Riverside Drive and West End Avenue and on June 18, 2022, it appears that two separate vehicles tried to run Plaintiff over, one on West 79th Street and Riverside Drive and one on West 79th Street and West End Avenue. Moreover, Plaintiff continues to be victimized by, *inter alia*, cyber torture.

EXHAUSTION OF ADMINISTRATIVE REMEDIES

97. Plaintiff has exhausted her administrative remedies.

98. On March 7, 2022, Plaintiff served, via Certified Mail, on the Office of the New York City Comptroller, a Notice of Claim. Each of the NYPD, NYPD Sergeant Christopher N. Saintu, NYPD Officer Kelvin I. Cruz, and Unidentified Officers and Employees of the NYPD is named as a respondent in said Notice of Claim. As of today's date, said Notice of Claim has not been resolved.

99. Said Notice of Claim satisfies Plaintiff's requirements under § 50-e of the General Municipal Law.

**FIRST CAUSE OF ACTION
UNLAWFUL ARREST
AGAINST NEW YORK CITY POLICE DEPARTMENT, NYPD SERGEANT
CHRISTOPHER N. SAINTU, NYPD OFFICER KELVIN I. CRUZ, AND JOHN DOE
DEFENDANTS**

100. Plaintiff repeats and realleges all of the allegations contained in Paragraphs 1 through 99 herein as if fully set forth herein at length.

101. Plaintiff's arrest on February 12, 2022 was unlawful. There was no warrant issued for Plaintiff's arrest and there was no probable cause or lawful grounds for the arrest or Plaintiff's involuntary transport to Mount Sinai West. Moreover, excessive force was used in the arrest of Plaintiff.

102. The police officers who arrived at Plaintiff's father's house could not reasonably have believed that Plaintiff was in immediate (or any) danger of harming herself or others. Other than claiming to have received a call from an unnamed individual, the contents of which were refuted by both Plaintiff and her father, the NYPD had no indication or alleged indication whatsoever that Plaintiff was in any danger, let alone immediate danger, of harming herself or others and both Plaintiff and her father made clear that Plaintiff was not in any danger of harming herself. There was moreover no indication or alleged indication that Plaintiff was in any danger of harming others. Plaintiff was sitting quietly in her father's house before the NYPD arrived, minding her own business and not disturbing anyone.

103. Moreover, upon information and belief, the NYPD never received the alleged call about Plaintiff and, upon information and belief, the existence of said call was fabricated by Sergeant Saintu in an attempt to gain access to Plaintiff's father's house and murder and/or harm Plaintiff and her father and raid Plaintiff's father's house, without any warrant or legal grounds therefor. To this day, despite two FOIL requests, the first of which was denied and the second of

which has been pending for months, Plaintiff has not received a recording of the alleged call. Nor has she been notified of the identity of the alleged caller. The hospital records provided to Plaintiff indicate that the hospital was never notified of the identity of the alleged caller.

104. Moreover, the decision of the officer acting as the officer in charge, NYPD Sergeant Christopher N. Saintu to provide a false name after he unlawfully entered Plaintiff's father's house prior to Plaintiff's arrest speaks volumes as to the criminal intent of the police and the EMS personnel, both real EMS personnel and those impersonating or purporting to impersonate EMS personnel.

105. The facts indicate that Plaintiff's arrest was carried out as part of a conspiracy of, *inter alia*, the Mossad and the Mount Sinai Health System, Inc., with the assistance of the NYPD, to murder and/or otherwise harm Plaintiff and her father, a key witness, so that Plaintiff would be unable to pursue her appeal currently pending in the Second Circuit Court of Appeals, and raid Plaintiff's father's house to seize evidence. Said appeal, against, among others, former Mossad Director Yosef Meir Cohen, Dr. Kenneth Davis (President and CEO of the Mount Sinai Health System, Inc.), and Dr. David Reich (President and Chief Operating Officer of Mount Sinai Hospital) exposes extensive corruption of the State of Israel, including of its Supreme Court, as well as, *inter alia*, extensive corruption of the Mount Sinai Health System, Inc.

106. Upon information and belief, the primary purpose of the NYPD's visit to Plaintiff's father's house was to murder and/or harm Plaintiff and her father, a key witness, and raid Plaintiff's father house, without any warrant or legal grounds therefor. Upon information and belief, the purpose of sending so many (approximately ten) NYPD officers to Plaintiff's father's house days after Plaintiff exposed, in a motion filed with the Second Circuit Court of Appeals that "there is documented evidence of corruption of this Court relating to this case" was

so that the officers could spread out throughout the large townhouse and seize evidence, which would subsequently be destroyed.

107. Notably, according to the EMS Report, an ESU [Emergency Service Unit], a highly-specialized, tactical Special Operations Unit, was sent to Plaintiff's father's house on the night of February 12, 2022. There was no legitimate reason for the NYPD to have sent a Special Operations unit to Plaintiff. The alleged sending of the equivalent of a SWAT team to Plaintiff's father's house is a further indication that the officers intended, among other things, to enter Plaintiff's father's house and conduct an unlawful raid on the house and seize evidence, *without any warrant* or legal grounds therefor.

108. Plaintiff's unlawful arrest and unlawful confinement were not privileged. Plaintiff notes that the facts show plainly that the police, after allegedly receiving a call that Plaintiff posted online that she would harm herself, took no steps to verify that the contents of the alleged call were true. And, even after they knew or should have known that the contents of the alleged call were not true, they, as it appears, began the process of breaking down the inside door to Plaintiff's father's house. The police subsequently unlawfully arrested Plaintiff, using excessive force, kidnapped her, and forced her into a Mount Sinai ambulance, where she was horrifically assaulted.

109. The police had *no reasonable cause* to believe that Plaintiff has a mental illness for which immediate observation, care and treatment in a hospital are appropriate and which is likely to result in serious harm to herself or others. The police, in a clear attempt to make Plaintiff's arrest seem legal, falsely claimed that Plaintiff had jumped off a first-floor window when she did not.

110. Plaintiff sustained severe injury, both physical and mental, among other injury, as a result of her unlawful arrest on February 12, 2022.

**SECOND CAUSE OF ACTION
FALSE IMPRISONMENT
AGAINST NEW YORK CITY POLICE DEPARTMENT, NYPD SERGEANT
CHRISTOPHER N. SAINTU, NYPD OFFICER KELVIN I. CRUZ, JONATHAN FOX,
ALEXANDER VARGAS, ST. LUKE'S ROOSEVELT HOSPITAL CENTER
FOUNDATION, INC. A/K/A MOUNT SINAI WEST, MOUNT SINAI HEALTH
SYSTEM, INC., MICHOTTE NABUA, R.N., DAVID ADESUYAN, R.N., SARA HADI,
M.D., ARTHUR YING YOUNG FU, M.D., RACHAEL HEYDEN, D.O., SABRINA
LEFCOCHILOS-FOGELQUIST, M.D., AND JOHN DOE DEFENDANTS**

111. Plaintiff repeats and realleges all of the allegations contained in Paragraphs 1 through 99 herein as if fully set forth herein at length.

112. Plaintiff's confinement in the Mount Sinai ambulance and in Mount Sinai West constitutes unlawful imprisonment of Plaintiff. Each of the defendants named in the above heading intended to confine Plaintiff; Plaintiff was conscious of such confinement (Plaintiff was conscious when she was forced into the Mount Sinai ambulance and during part of her confinement in Mount Sinai West); the confinement was involuntary; and the confinement, which deviated from standard legal, police, and medical practice, was not privileged.

113. Said defendants had no lawful right to confine Plaintiff in the Mount Sinai ambulance nor did they have any lawful right to confine her in Mount Sinai West.

114. Plaintiff's admission to the CPEP and subsequent evaluation and imprisonment there were unlawful. As evidenced by the hospital records provided to Plaintiff, the police never provided the hospital with a Form OMH 474A/476A documenting that there were lawful grounds for Plaintiff's involuntary transport to the CPEP, which there were not. The Attending Attestation signed by Dr. Heyden states, *inter alia*, that Plaintiff's transport to the hospital was

activated by “a? friend” for a “wellness check.” Dr. Heyden surely knew, however, that a patient may not be involuntarily confined and evaluated in the CPEP for simply a “wellness check.” A police officer was required to attest that Plaintiff appeared to be mentally ill and was conducting herself in a manner likely to result in serious harm to herself or others. As indicated by the hospital records provided to Plaintiff, the CPEP received no such attestation and was not lawfully permitted to admit, examine, or confine Plaintiff.

115. Moreover, after Plaintiff requested, repeatedly, to leave the CPEP, the hospital staff were required to allow her to leave as she did not, as evidenced by the hospital records themselves, meet the criteria for continued involuntary confinement (or any confinement). The hospital staff unlawfully refused to allow Plaintiff to leave.

116. Plaintiff sustained severe injury, both physical and mental, among other injury, as a result of her false imprisonment on February 12-13, 2022.

**THIRD CAUSE OF ACTION
NEGLIGENCE**

**AGAINST NEW YORK CITY POLICE DEPARTMENT, NYPD SERGEANT
CHRISTOPHER N. SAINTU, NYPD OFFICER KELVIN I. CRUZ, JONATHAN FOX,
ALEXANDER VARGAS, ST. LUKE’S ROOSEVELT HOSPITAL CENTER
FOUNDATION, INC. A/K/A MOUNT SINAI WEST, MOUNT SINAI HEALTH
SYSTEM, INC., MICHOTTE NABUA, R.N., DAVID ADESUYAN, R.N., SARA HADI,
M.D., ARTHUR YING YOUNG FU, M.D., RACHAEL HEYDEN, D.O., SABRINA
LEFCOCHILOS-FOGELQUIST, M.D., AND JOHN DOE DEFENDANTS**

117. Plaintiff repeats and realleges all of the allegations contained in Paragraphs 1 through 99 herein as if fully set forth herein at length.

118. Each of the defendants named in the above heading owed Plaintiff a duty of care; each grossly breached its duty of care; and Plaintiff’s injuries were proximately caused by the breaches of the duties of care.

**FOURTH CAUSE OF ACTION
ASSAULT AND BATTERY
AGAINST NEW YORK CITY POLICE DEPARTMENT, NYPD SERGEANT
CHRISTOPHER N. SAINTU, NYPD OFFICER KELVIN I. CRUZ, JONATHAN FOX,
ALEXANDER VARGAS, ST. LUKE'S ROOSEVELT HOSPITAL CENTER
FOUNDATION, INC. A/K/A MOUNT SINAI WEST, MOUNT SINAI HEALTH
SYSTEM, INC., DAVID ADESUYAN, R.N., RACHAEL HEYDEN, D.O., SABRINA
LEFCOCHILOS-FOGELQUIST, M.D., AND JOHN DOE DEFENDANTS**

119. Plaintiff repeats and realleges all of the allegations contained in Paragraphs 1 through 99 herein as if fully set forth herein at length.

120. Plaintiff was subjected to many instances of assault and battery on February 12, 2022.

121. First, Plaintiff was forcibly arrested and handcuffed, with handcuffs that were much too tight on her and caused her great pain. As a result of her forcible arrest, Plaintiff moreover had trouble breathing.

122. Plaintiff was then forcibly swung onto a stretcher, with her hands handcuffed behind her, and restrained to the stretcher.

123. Plaintiff was then forced into a Mount Sinai ambulance.

124. In the ambulance, Plaintiff was further restrained to the stretcher, with her hands still handcuffed behind her.

125. Plaintiff was subsequently injected against her will in the ambulance, rendering her unconscious.

126. Bodily evidence, among other evidence, indicates that, while unconscious, Plaintiff was operated on and a foreign body was implanted in her lower right leg.

127. In addition to the injection that rendered her unconscious, there is also evidence, in the form of multiple needle marks, to suggest that Plaintiff had an intravenous catheter

inserted into her while she was unconscious and/or that blood was drawn from her and/or that an additional drug or other substance was injected into her.

128. Moreover, upon information and belief, Plaintiff was, as indicated by, *inter alia*, bodily evidence, raped while unconscious.

129. Plaintiff further underwent, while unconscious, an unlawful body search at the hospital. At a minimum, during such search, Plaintiff was stripped naked, which resulted in her being touched in intimate areas.

130. Plaintiff sustained severe injury, both physical and mental, among other injury, as a result of her assault and battery.

**FIFTH CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
AGAINST ALL DEFENDANTS**

131. Plaintiff repeats and realleges all of the allegations contained in Paragraphs 1 through 99 herein as if fully set forth herein at length.

132. Each of the defendants named in this Amended Verified Complaint is liable for intentional infliction of emotional distress on Plaintiff.

133. The actions of each of the defendants named in this Amended Verified Complaint were extreme and outrageous; said defendants intended to cause, or disregarded a substantial probability of causing, severe emotional distress to Plaintiff; and Plaintiff suffered severe emotional distress, among other injury, as a direct result of the defendants' conduct.

**SIXTH CAUSE OF ACTION
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS
AGAINST ALL DEFENDANTS**

134. Plaintiff repeats and realleges all of the allegations contained in Paragraphs 1 through 99 herein as if fully set forth herein at length.

135. Each of the defendants named in this Amended Verified Complaint is liable for negligent infliction of emotional distress on Plaintiff.

136. Each of the defendants named in this Amended Verified Complaint owed Plaintiff a duty of care; each grossly breached its duty of care; and Plaintiff sustained severe emotional distress that was proximately caused by the breaches of the duties of care.

**SEVENTH CAUSE OF ACTION
VIOLATION OF JUDICIARY LAW § 487
AGAINST ERICA LIU, ESQ.**

137. Plaintiff repeats and realleges all of the allegations contained in Paragraphs 1 through 99 herein as if fully set forth herein at length.

138. Erica Liu, Esq. violated Judiciary Law § 487. As discussed herein, Erica Liu, Esq., an attorney, is guilty of deceit and collusion, and consented to deceit and collusion, with the intent to deceive the United States District Court for the Southern District of New York and Plaintiff.

139. As discussed herein, Plaintiff suffered severe damage as a result of Erica Liu, Esq.'s said deceit and collusion, and consent to deceit and collusion, with the intent to deceive the United States District Court for the Southern District of New York and Plaintiff.

JUDGMENT DEMANDED

WHEREFORE, Plaintiff demands Judgment as follows:

- (i) against New York City Police Department, NYPD Sergeant Christopher N. Saintu, NYPD Officer Kelvin I. Cruz, and John Joe Defendants, jointly and severally, on her First Cause of Action, awarding Plaintiff damages in an amount to be determined at trial, and which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, for all of Plaintiff's injuries resulting from her unlawful arrest; awarding Plaintiff punitive damages in an amount to be determined at trial and which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction; and awarding Plaintiff prejudgment interest as provided by law;
- (ii) against New York City Police Department, NYPD Sergeant Christopher N. Saintu, NYPD Officer Kelvin I. Cruz, Jonathan Fox, Alexander Vargas, St. Luke's Roosevelt Hospital Center Foundation, Inc. a/k/a Mount Sinai West, Mount Sinai Health System, Inc., Michotte Nabua, R.N., David Adesuyan, R.N., Sara Hadi, M.D., Arthur Ying Young FU, M.D., Rachael Heyden, D.O., Sabrina Lefcochilos-Fogelquist, M.D., and John Doe Defendants, jointly and severally, on her Second Cause of Action, awarding Plaintiff damages in an amount to be determined at trial, and which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, for all of Plaintiff's injuries resulting from her false imprisonment; awarding Plaintiff punitive damages in an amount to be determined at trial and which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction; and awarding Plaintiff prejudgment interest as provided by law;

(iii) against New York City Police Department, NYPD Sergeant Christopher N. Saintu, NYPD Officer Kelvin I. Cruz, Jonathan Fox, Alexander Vargas, St. Luke's Roosevelt Hospital Center Foundation, Inc. a/k/a Mount Sinai West, Mount Sinai Health System, Inc., Michotte Nabua, R.N., David Adesuyan, R.N., Sara Hadi, M.D., Arthur Ying Young FU, M.D., Rachael Heyden, D.O., Sabrina Lefcochilos-Fogelquist, M.D., and John Doe Defendants, jointly and severally, on her Third Cause of Action, awarding Plaintiff damages in an amount to be determined at trial, and which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, for all of Plaintiff's injuries resulting from the negligence and/or gross negligence of said defendants; awarding Plaintiff punitive damages in an amount to be determined at trial and which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction; and awarding Plaintiff prejudgment interest as provided by law;

(iv) against New York City Police Department, NYPD Sergeant Christopher N. Saintu, NYPD Officer Kelvin I. Cruz, Jonathan Fox, Alexander Vargas, St. Luke's Roosevelt Hospital Center Foundation, Inc. a/k/a Mount Sinai West, Mount Sinai Health System, Inc., David Adesuyan, R.N., Rachael Heyden, D.O., Sabrina Lefcochilos-Fogelquist, M.D., and John Doe Defendants, jointly and severally, on her Fourth Cause of Action, awarding Plaintiff damages in an amount to be determined at trial, and which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, for all of Plaintiff's injuries resulting from her assault and battery; awarding Plaintiff punitive damages in an amount to be determined at trial and which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction; and awarding Plaintiff prejudgment interest as provided by law;

(v) against all defendants named in this Amended Verified Complaint, jointly and severally, on her Fifth Cause of Action, awarding Plaintiff damages in an amount to be

determined at trial, and which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, for all of Plaintiff's injuries resulting from the intentional infliction of emotional distress on her; awarding Plaintiff punitive damages in an amount to be determined at trial and which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction; and awarding Plaintiff prejudgment interest as provided by law;

(vi) against all defendants named in this Amended Verified Complaint, jointly and severally, on her Sixth Cause of Action, awarding Plaintiff damages in an amount to be determined at trial, and which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, for all of Plaintiff's injuries resulting from the negligent infliction of emotional distress on her; awarding Plaintiff punitive damages in an amount to be determined at trial and which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction; and awarding Plaintiff prejudgment interest as provided by law;

(vii) against defendant Erica Liu, Esq. on her Seventh Cause of Action, awarding Plaintiff treble damages in an amount to be determined at trial, and which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, for all of Plaintiff's injuries resulting from Erica Liu, Esq.'s violations of Judiciary Law § 487 and awarding Plaintiff prejudgment interest as provided by law;

(viii) awarding Plaintiff the costs and disbursements of this action; and

(ix) awarding such other and further relief as the Court deems just and proper.

DEMAND FOR JURY TRIAL

Plaintiff hereby demands a trial by jury on all of her claims.

Dated: August 15, 2022
New York, New York

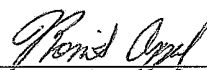


Ronit D. Appel
322 West 78th Street
New York, NY 10024
347-387-6100
ronitappel@gmail.com
Plaintiff and Attorney for Plaintiff

VERIFICATION

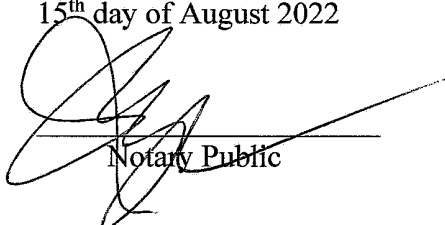
State of New York)
) ss.:
County of New York)

I, Ronit D. Appel, being duly sworn, depose and state that I have read the foregoing Amended Verified Complaint dated August 15, 2022 and know the contents thereof. The same are true to my knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters I believe them to be true.



Ronit D. Appel

Subscribed to and sworn before me this
15th day of August 2022



Notary Public

SMARANDA A GATA LUNGU
Notary Public - State of New York
NO. 01GA6030039
Qualified in New York County
My Commission Expires Aug 30, 2025